clear from the words in the regulation that, ‘No person shall by way of mouth or in writing spread reports likely to cause disaffection or alarm among any of His Majesty’s forces or among the civilian population’,[4] causing well-known figures such as Bertrand Russell and John William Muir to be incarcerated with impunity. To mirror these developments in India, the Defence of India Act 1915 was passed in the first year of the Great War to introduce measures under which all those who posed a threat to the security of the state could be detained while it was engaged in war. Yet, when the Great War ended, all these powers were retained in the United Kingdom.

In India, the Rowlatt Commission recommended that these measures be carried forward into peacetime by the Anarchical and Revolutionary Crimes Act, even though the 1915 Act was decidedly a temporary measure designed specifically for the exigency of war, when the state had to resort to emergency powers in order to preserve and safeguard itself. As a preventative piece of legislation, it allowed the arbitrary internment and detention of a range of actors from members of opposition political parties to revolutionaries, and from Germans to terrorists. Like the UK act, for which the extension was repeatedly renewed, the Indian act met with the same fate. In India, however, it was the unabated threat of revolutionary terrorism which was used as the justification for the extension of temporary executive powers with an eye to put them on a more permanent footing.

In December 1917, the colonial government authorized the formation of a commission, headed by Sir Sidney Rowlatt, to ‘investigate and report on the nature of the criminal conspiracies connected with the revolutionary movement in India’ and to ‘advise as to the legislations, if any, necessary to enable the Government to deal effectively with them’.[5] Less than six months later in April 1918, the Rowlatt Report was published, despite the fact that the formal cessation of hostilities in Europe was still to occur and the Defence of India Act 1915 was still extant. Durba Ghosh remarks that at ‘[t]his peculiar timing and logic – producing the language and rationale for a permanent executive order’ was something which ‘was fueled by the anxiety of what might happen to the colonial government if it lost its